

Attachment 2 – Redacted J and A – 70Z03826QJ0000170

JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION

10 U.S.C. § 3205

Aircraft Door

Solicitation 70Z03826QJ0000170

Pursuant to the requirements of the Competition in Contracting Act (CICA) as implemented by Federal Acquisition Regulation (FAR) 12.102(b), FAR Class Deviation 25-21 Rev. 1 for FAR Part 12¹, FAR 6.103, FAR Class Deviation 25-11 for FAR Part 6 and in accordance with the requirements of Revolutionary FAR Overhaul (RFO) 6.104, the justification for the use of the statutory authority under RFO 6.103 is justified by the following facts and rationale required under RFO 6.104-1 as follows:

1. Agency and Contracting Activity.

The Department of Homeland Security, United States Coast Guard (USCG), Aviation Logistics Center (ALC), Medium Range Recovery (MRR) Product Line Division.

2. Nature and/or Description of the Action being Approved.

(a) Nature of the action: The USCG intends to award on a sole source basis a Delivery Order to the Original Equipment Manufacturer (OEM), Sikorsky Aircraft Corporation (SAC, Cage Code 78286), for the procurement of the Aircraft Door, hereafter referred to as “component”, to be utilized on the MH-60T aircraft. This requirement will be solicited utilizing FAR Part 12 (FAR Class Deviation 25-21) Acquisition of Commercial Products and Commercial Services, in conjunction with FAR Subpart 12.201-1 (FAR Class Deviation 25-21) Simplified Procedures.

(b) Name and address of the contractor:

Sikorsky Aircraft Corporation (SAC)
6900 Main Street
Stratford, CT 06614
Cage Code: 78286

(c) Contract Type: Firm Fixed-Price (FFP) Delivery Order

(d) Estimated total value (including options): [REDACTED] (rounded to the nearest dollar)

(e) Type of funding: Procurement Construction & Improvement (PC&I) funds will be used.

¹ In this document, citations to RFO Parts 12, 6, 10, 15, and 25 are citations specifically to Federal Acquisition Regulation (FAR) Class Deviation 25-21 Rev. 1 for FAR Part 12, FAR Class Deviation 25-11 for FAR Part 6, FAR Class Deviation 25-06 for FAR Part 10, FAR Class Deviation 26-08 Rev. 1 for FAR Part 15, and FAR Class Deviation 26-09, Rev. 1 for FAR Part 25, which were issued as part of the Revolutionary FAR Overhaul (RFO), which was implemented in response to Executive Order 14275, *Restoring Common Sense to Federal Procurement*, signed April 15, 2025.

(f) Year of funding: Fiscal Year 2026

(g) Solicitation number: 70Z03826QJ0000170

(h) Background information about the requirement:

The procurement of the Aircraft Door was previously awarded to SAC under Purchase Order DTCG38-03-P-700348 on 09/11/2003 in the amount of \$377,067 with a period of performance end date of 12/15/2003.

3. Description of Supplies/Services.

The objective of this requirement is to provide the necessary Aircraft Door for the initial outfitting for fleet expansion of the MH-60T aircraft. The component of this justification will supply the component required for the Service Life Extension Program (SLEP), which consists of the Navy conversion aircraft and the initial outfitting of the incoming new MH-60T hull (airframes). This requirement will also support fleet maintenance under our existing Programmed Depot Maintenance (PDM). This specialized, high demand aircraft currently enables the USCG to perform mission such as search and rescue, law enforcement, international ICE patrol, marine environmental protection, and marine resource conservation. With such a demanding operational tempo, aircraft condition and availability are essential to mission success. This component is interchangeable throughout the MH-60T fleet. SAC is the OEM of this component and the only ALC MRR Engineering approved source. In order to maintain integrity of the system, ensure compatibility of the parts, and safe operation of the aircraft, this component must be obtained from SAC which is the OEM and the only ALC MRR Engineering approved source. The component to be procured is as follows:

NIIN	Part Number	Nomenclature
1560-01-345-4812	70207-22201-062	Aircraft Door

4. Identification of Statutory Authority Permitting Other Than Full and Open Competition.

The statutory authority permitting other than full and open competition is 10 U.S.C. § 3205 as implemented by FAR 6.103-1 (FAR Class Deviation 25-11) entitled "Only One Responsible Source and No Other Supplies Will Satisfy Agency Requirements."

5. Identification of Exception to the Buy American Statute.

This justification and approval for Other than Full and Open Competition (J&A) does not include the exception listed under FAR 25.103(b)(2) or FAR 25.202(a)(2). Therefore, the Buy American Statute will be included in the terms and conditions of this Delivery Order.

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6. Demonstration that the Proposed Contractor's Unique Qualifications or the Nature of the Acquisition Requires Use of the Authority Cited.

(a) Rationale for using the authority cited in section 4 of the J&A.

SAC is the OEM and the only authorized source to provide this component as all the specifications, manufacturing drawings, data, test equipment, and tooling required for the manufacture of the component are proprietary to them. Due to these limitations, the USCG did not purchase rights to the proprietary data required to foster a competitive environment as part of any original provisioning for use on the MH-60T aircraft. The cost to procure the data would be cost prohibitive. Additional correspondence with SAC, dated 03/13/2026, confirmed that the component is only procurable through SAC; therefore, SAC is the only source capable of fulfilling the needs of this purchase. There are no alternate sources, authorized distributors, or alternate part numbers available to meet the Government's requirements. No other part numbers can be utilized. No acceptable alternate vendors have been identified.

(b) Details covering what events lead to the situation requiring use of other than full and open competition procedures including whether any portion of the work can be segregated to allow for competition.

Sources Sought Notice (SSN), 70Z03826IJ0000018, was posted at the Government Point of Entry (GPE) website SAM.gov on 03/18/2026, with a closing date of 03/26/2025 in an effort to identify potential vendors. One (1) response was received as a result of this posting. Due to the lack of proprietary data, contact efforts were made to the OEM, SAC. As cited in 6a., correspondence with SAC confirmed that they are the licensed OEM and all technical data required for the manufacture of the component is proprietary to them. Additional correspondence with MRR Engineering, dated 04/20/2026 confirmed there are no other sources authorized to supply the component other than SAC. Given this information, no portion of the work can be segregated to allow for competition as SAC is the only approved source to provide this component.

(c) Summarize alternatives considered and why they will not work.

The component of this requirement must have clear, documented traceability to the OEM, SAC. As the OEM, SAC confirmed via email dated 03/13/2026, that they hold the proprietary data and have the specifications, drawings, data, test equipment, and tooling to manufacture the component that there are no authorized distributors, and their proprietary technology is not for release of sale. Given this information, it has been determined this requirement will be sole source to the OEM, SAC.

(d) Impact to the mission that would result if the J&A is not approved and, consequently, the product or service not provided.

Failure to approve this J&A would cause a lack of components which would cause a severe degradation in the USCG's ability to conduct search and rescue, law enforcement, international ICE patrol, marine environmental protection, marine resource conservation, and various other missions.

- (e) Rationale for use of the nonavailability exception to the Buy American statute, including detailed information explaining why the particular articles, materials, or supplies of the class or kind to be acquired, either as end items or components, are not mined, produced, or manufactured in the United States in sufficient and reasonably available commercial quantities and of a satisfactory quality. The nonavailability exception to the Buy American Statute does not apply to this requirement. Therefore, the Buy American Statute will be included in both the solicitation and terms and conditions of this contract.

7. Description of Efforts Made to Ensure that Offers are Solicited from as Many Potential Sources as is Practicable.

- (a) If an entry was made in Acquisition Planning Forecast System (APFS), provide the publication date.
Not applicable.
- (b) If an announcement has already been made in the System for Award Management (SAM), GFS website, SAM.gov, provide the publication date.
SSN, 70Z03826IJ0000018, was posted at GPE website SAM.gov on 03/18/2026, with a closing date of 03/26/2025 in an effort to identify potential vendors. One (1) response was received as a result of this posting.
- (c) If an announcement is being planned for posting at the GFS website, SAM.gov, provide the estimated publication date.
This J&A will be posted to the GPE website, SAM.gov with an estimated posting date of 04/24/2026 and closing date of 06/08/2026. Any capability statement, proposal, or quotation received in response will be considered prior to award.
- (d) If an announcement will not be published, identify the applicable exception under FAR Part 5.
There are no applicable exceptions, therefore an announcement will be published.

8. Determination by the Contracting Officer that the Anticipated Cost to the Government will be Fair and Reasonable.

The Contracting Officer anticipates that the prices for this requirement will be determined fair and reasonable. This will be based on comparison of proposed prices with prices found reasonable on previous purchases in accordance with (IAW) FAR 15.404-1(b)(2), comparison to the IGCE IAW FAR 15.404-1(b)(5) and comparison with similar items in a related industry IAW FAR 15.404-1(b)(6).

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9. Description of Market Research.

- (a) Describe the market research techniques used, results, date(s) when the market research was conducted, and how the contracting officer used the market research to determine price reasonableness.

Market research for the Aircraft Door was conducted IAW Far Part 10 March 2026 - April 2026. SSN, 70Z03826IJ0000018, was posted at [SAM.gov](https://sam.gov) on 03/18/2026 with a closing date of 03/25/2026 in efforts to identify potential vendors. One (1) response was received for this posting. A review of the Asset Maintenance Management Information System (AMMIS) database was conducted. Government databases such as General Services Administration (GSA), Federal Logistics Information System Web Search (WebFLIS), and FedMall were all reviewed as part of market research. Commercial databases such as Inventory Locator Service (ILS) website were reviewed to identify other potential sources. Existing DHS-wide and multi-component Contract Vehicles with DHS Strategic Sourcing Program Office and/or on DHS Enterprise-side Contract Vehicle Portal were reviewed on 04/17/2026 and were determined out of scope of this requirement. Correspondence with SAC confirmed that SAC is the OEM. SAC also confirmed that they hold all the proprietary data, have the specifications, drawings, data, test equipment, and tooling to manufacture these components and there are no authorized distributors. Therefore, SAC is the only source capable of proving the required components.

- (b) Describe the market research results that support the determination that the items are nonavailable.

Not applicable as the nonavailability exception does not apply to this requirement.

- (c) If market research was not conducted, state why.

Market research was conducted IAW FAR Part 10 from March 2026 – April 2026.

- (d) If patents, copyrights, and/or intellectual property are applicable to the acquisition, describe the circumstances for acquiring a patented or copyrighted product on the representation of the intellectual property holder that has not been licensed for resale and consult with the Coast Guard IP attorney.

Patents, copyrights, and/or intellectual property are not applicable to this requirement.

10. Any Other Facts Supporting the Use of Other Than Full and Open Competition.

- (a) An explanation why technical data packages, specifications, statement of work, or purchase descriptions are not suitable for full and open competition.

SAC owns all of the specifications, drawings, data, test equipment, and tooling required to procure this component and is proprietary to them. The USCG does not have rights to the proprietary and it is cost prohibitive to obtain.

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- (b) Discuss why your requirement cannot be modified to enhance competition.
This requirement cannot be modified to enhance competition because the components and the subsequent technological data are not available from any vendor other than the OEM, as well as any increased to flight safety is never acceptable. No alternative sources nor alternate components may be considered. Therefore, this requirement cannot be modified.
- (c) For a proposed contract subject to the restrictions of FAR 6.103-1 for follow-on acquisitions as described in 6.103-1(c)(2)(i), all components must provide an estimate of the cost to the Government that would be duplicated and detailed information on how the estimate was derived.
This requirement is not subject to the restrictions of FAR 6.103-1 as described in 6.103-1(c)(2)(i).
- (d) For a proposed contract subject to the restrictions of FAR 6.103-2(c) or HSAR 3006.103-2(c)(70), HSAR Class Deviation 25-01 and where FAR 6.103-2 is cited as the authority, describe the exceptional circumstances allowing for an award for a period of performance in excess of the one-year limitation (applicable to all federal agencies) or the DHS-specific statutory 150-day limitation.
This requirement is not subject to the restrictions of FAR 6.103-2(c) or HSAR 3006.103-2(c)(70), HSAR Class Deviation 25-01 and where FAR 6.103-2 is cited as the authority.

11. A Listing of the Sources, if Any, that Expressed, in Writing, an Interest in the Acquisition.

There was only one (1) other source that expressed interest in this requirement. The response was deemed technically unacceptable as they did not respond to the market research questions and the OEM confirmed there are no authorized distributors for the component.

12. A Statement of the Actions, if Any, the Agency May Take to Remove or Overcome Any Barriers to Competition Before Any Subsequent Acquisition for Supplies or Services Required.

- (a) Will the Government revise overly technical specifications, acquire data rights, etc.?
There is only one (1) responsible source approved to supply this component in support of the MH-60T fleet growth, which is the OEM, SAC. They own all specifications and drawings of this component under this justification. The USCG did not purchase rights to the proprietary data required to foster a competitive environment as part of any original provisioning for use on the MH-60T aircraft. Every reasonable effort will be made to remove barriers to competition for future requirements. These efforts will include continuing to identify additional sources that may eventually become approved by ALC MRR Engineering.

- (b) When a J&A is issued for the purposes of acquiring goods or services while competitive procurement is being conducted, the justification should include a detailed timeline for completion of the competitive procurement. The period of performance for the sole source action should fairly balance the time needed to complete the competitive procurement. The focus should be on minimizing the need for additional sole source awards.
Not applicable.

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13. Contracting Officer's Certification.

I certify that the data supporting the recommended use of other than full and open competition is accurate and complete to the best of my knowledge and belief.



14. Technical/Requirements Personnel Certification.

I certify this requirement meets the Government's minimum need and that the supporting data, which forms a basis for this justification, is complete and accurate.

